

subsection (3) of section thirty-five
section seventy-two

shall extend to Wales and Monmouthshire; and accordingly the said Sixth Schedule shall be amended by the omission of the references to those provisions.

(2) In its application to Wales and Monmouthshire section seventy-two of the Marriage Act, 1949, shall have effect as if it defined the expression "church electoral roll" as meaning an electoral roll of a parish kept in accordance with the constitution and regulations of the Church in Wales for the time being in force.

2. Any parish which is treated for the purposes of the Welsh Church Act, 1914, as being wholly within or wholly without Wales or Monmouthshire shall be so treated also for the purposes of the Marriage Act, 1949, and of this Act. Meaning of
Wales and
Monmouth-
shire.

3.—(1) This Act may be cited as the Marriage (Wales and Monmouthshire) Act, 1962. Short title
and citation.

(2) This Act, the Marriage Acts, 1949 to 1960, and the Marriage (Secretaries of Synagogues) Act, 1959, may be cited together as the Marriage Acts, 1949 to 1962. 7 & 8 Eliz. 2.
c. 13.

CHAPTER 33

Health Visiting and Social Work (Training) Act, 1962

ARRANGEMENT OF SECTIONS

Section

1. Councils for training of health visitors and training in social work.
2. Functions of Council for the Training of Health Visitors.
3. Functions of Council for Training in Social Work.
4. Expenses of Councils.
5. Powers of Ministers and local authorities with respect to research.
6. Exercise of powers of Privy Council.
7. Short title, interpretation, commencement and extent.

SCHEDULES:

- First Schedule—Constitution, etc., of Councils.
Second Schedule—Advisory Committees.

An Act to establish two Councils with functions relating to the training of health visitors and training in social work; to extend the powers of the Minister of Health, the Secretary of State and local authorities with respect to research into matters of social welfare; and for purposes connected therewith. [3rd July, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Councils for training of health visitors and training in social work.

1.—(1) There shall be constituted two Councils, to be called respectively the Council for the Training of Health Visitors and the Council for Training in Social Work, which shall have such functions relating to the training of health visitors and training in social work as are or may be assigned to them by or under the following provisions of this Act.

(2) The provisions of the First Schedule to this Act shall have effect with respect to the constitution and proceedings of the Councils and the keeping and audit of their accounts; and the provisions of the Second Schedule to this Act shall have effect with respect to the establishment of committees to advise the Councils on the exercise of their functions so far as they concern Scotland and Northern Ireland.

(3) Each of the Councils may appoint such officers and servants, upon such terms as to remuneration, pension rights and other conditions of service, as the Council may, with the approval of the Health Ministers, determine.

(4) Each of the Councils may pay to its members and to the members of any committee appointed by it such travelling, subsistence and other allowances as the Council may, with the approval of the Health Ministers, determine.

Functions of Council for the Training of Health Visitors.

2.—(1) The Council for the Training of Health Visitors—

- (a) shall promote the training of health visitors by seeking to secure suitable facilities for the training of persons intending to become health visitors, by approving courses as suitable to be attended by such persons and by seeking to attract persons to such courses;
- (b) if it appears to them that adequate provision is not being made for the further training of health visitors, shall provide or secure the provision of courses for this purpose;
- (c) may conduct or make arrangements for the conduct of examinations in connection with such courses as are mentioned in the preceding paragraphs; and
- (d) may carry out or assist other persons in carrying out research into matters relevant to the training of health visitors.

(2) An approval under paragraph (a) of subsection (1) of this section shall be given by the Council in accordance with rules made by the Council and approved by the Health Ministers, and

those rules may specify subjects to be comprised in the courses to be approved and shall specify the conditions for admission to the courses and for the award by the Council of certificates of their successful completion.

3.—(1) The Council for Training in Social Work—

Functions of
Council for
Training in
Social Work.

- (a) shall promote training in such social work as is required in the health and welfare services by seeking to secure suitable facilities for training persons in such work, by approving courses as suitable to be attended by persons engaged or intending to engage in such work and by seeking to attract persons to such courses ;
- (b) if it appears to them that adequate provision is not being made for further training in such work, shall provide or secure the provision of courses for this purpose ;
- (c) may conduct or make arrangements for the conduct of examinations in connection with such courses as are mentioned in the preceding paragraphs ; and
- (d) may carry out or assist other persons in carrying out research into matters relevant to training for social work in the health and welfare services.

(2) An approval under paragraph (a) of subsection (1) of this section shall be given by the Council in accordance with rules made by the Council and approved by the Privy Council, and those rules may specify subjects to be comprised in the courses to be approved and shall specify the conditions for admission to the courses and for the award by the Council of certificates of their successful completion.

(3) Her Majesty may by Order in Council make provision for conferring on the Council for Training in Social Work such functions in relation to other social work as are conferred on it by subsections (1) and (2) of this section in relation to the social work therein mentioned ; and, in connection therewith, for making such modifications in the constitution of that Council as She may deem expedient.

(4) An Order in Council under this section may be varied or revoked by a subsequent Order in Council and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) In this section “health and welfare services” means services provided by a local authority in carrying out their functions under Part III of the National Health Service Act, 1946, Part III of the National Health Service (Scotland) Act, 1947, Part III of the National Assistance Act, 1948, or any corresponding enactment in force in Northern Ireland, or similar services provided by a voluntary organisation.

**Expenses of
Councils.**

4. The Minister of Health and the Secretary of State shall pay to each of the Councils mentioned in section one of this Act such sums out of moneys provided by Parliament as may be necessary to defray the expenditure incurred by the Council with the approval of the Health Ministers, so far as that expenditure exceeds any income derived from the exercise of the Council's functions and is not met out of moneys provided by the Parliament of Northern Ireland.

**Powers of
Ministers
and local
authorities
with respect to
research.**

5.—(1) Without prejudice to any powers conferred on them by any other Act,—

- (a) the Minister and the Secretary of State may promote research into any matter relating to the functions of local authorities under Part III of the National Assistance Act, 1948, and, in particular, may participate with or assist other persons in conducting such research ;
- (b) any authority which is a local authority for the purposes of the said Part III may conduct or assist other persons in conducting research into any matter relating to the functions of local authorities under that Part ; and
- (c) any local health authority in England or Wales may conduct or assist other persons in conducting research into matters relating to the functions of local health authorities under Part III of the National Health Service Act, 1946.

(2) Any expenditure incurred under this section by such an authority as is mentioned in the preceding subsection shall be relevant expenditure for the purposes of sections two and three of the Local Government Act, 1958, or, as the case may be, of sections two and three of the Local Government and Miscellaneous Financial Provisions (Scotland) Act, 1958 (which relate to general grants).

**Exercise of
powers of
Privy Council.**

6. The powers conferred by this Act on the Privy Council may be exercised by any three or more members of the Privy Council.

**Short title,
interpretation,
commence-
ment and
extent.**

7.—(1) This Act may be cited as the Health Visiting and Social Work (Training) Act, 1962.

(2) In this Act " the Health Ministers " means the Minister of Health, the Secretary of State and the Minister of Health and Local Government for Northern Ireland.

(3) This Act shall come into force on such day as the Minister of Health and the Secretary of State may by order made by statutory instrument appoint.

(4) This Act, except section five, extends to Northern Ireland.

(5) For the purposes of section six of the Government of Ireland Act, 1920 (which relates to the powers of the Parliament of Northern Ireland to make laws) this Act shall be deemed to have been passed before the day appointed for the purposes of that section.

SCHEDULES

FIRST SCHEDULE

Section 1.

CONSTITUTION, ETC., OF COUNCILS

Status and composition

1. The Council for the Training of Health Visitors shall consist of a chairman and thirty-one other members and the Council for Training in Social Work of a chairman and thirty-two other members, and each of those Councils shall be a body corporate.

2. The Privy Council shall appoint one person to be chairman of both Councils.

3. The other members of the Council for the Training of Health Visitors shall be appointed as follows:—

- (a) fourteen by the Health Ministers ;
- (b) six by the Health Ministers and the Minister of Education ;
- (c) three by the County Councils Association ;
- (d) one by the London County Council ;
- (e) three by the Association of Municipal Corporations ;
- (f) one by the Association of County Councils in Scotland ;
- (g) one by the Convention of Royal Burghs of Scotland ;
- (h) one by the Scottish Counties of Cities Association ;
- (i) one by the Governor of Northern Ireland.

4. The other members of the Council for Training in Social Work shall be appointed as follows:—

- (a) fourteen by the Health Ministers ;
- (b) seven by the Health Ministers and the Minister of Education ;
- (c) three by the County Councils Association ;
- (d) one by the London County Council ;
- (e) three by the Association of Municipal Corporations ;
- (f) one by the Association of County Councils in Scotland ;
- (g) one by the Convention of Royal Burghs of Scotland ;
- (h) one by the Scottish Counties of Cities Association ;
- (i) one by the Governor of Northern Ireland.

1ST SCH.*Supplementary provisions as to appointment of members*

5. Of the members mentioned in sub-paragraph (a) of paragraph 3 of this Schedule thirteen shall be appointed as follows:—

- (a) eight after consultation with associations appearing to the Health Ministers to represent health visitors ;
- (b) three after consultation with the British Medical Association and the Society of Medical Officers of Health ;
- (c) two after consultation with the General Nursing Council for England and Wales and the General Nursing Council for Scotland.

6. The members mentioned in sub-paragraph (b) of paragraph 3 of this Schedule shall be appointed after consultation with such universities and other bodies concerned with the training of health visitors as the Health Ministers and the Minister of Education think fit.

7. Of the members mentioned in sub-paragraph (a) of paragraph 4 of this Schedule twelve shall be appointed as follows:—

- (a) ten after consultation with organisations appearing to the Health Ministers to represent social workers or to be otherwise concerned with social work ; and
- (b) two after consultation with the British Medical Association and the Society of Medical Officers of Health.

8. The members mentioned in sub-paragraph (b) of paragraph 4 of this Schedule shall be appointed after consultation with such universities and other bodies concerned with the training of social workers as the Health Ministers and the Minister of Education think fit.

9. In making any appointments under this Schedule regard shall be had to the desirability of securing an association between the two Councils and, in particular, the County Councils Association and the Association of Municipal Corporations shall each appoint one person as a member of both Councils.

10. Of the members of each Council who are appointed by the Health Ministers, one at least shall be a fully registered medical practitioner engaged in general medical practice, and that member shall be among those appointed after consultation with the British Medical Association and the Society of Medical Officers of Health.

11. The Health Ministers and the Minister of Education shall ensure that one member at least of each Council is a person who at the time of his appointment is ordinarily resident in Wales and shall, if necessary, make their appointments accordingly.

Terms of Office

12. The chairman of the Councils shall be appointed for a term not exceeding five years.

13. Each of the other members of each Council shall be appointed for a term of three years, except that a member appointed to fill a casual vacancy shall be appointed for the remainder of the term for which his predecessor was appointed.

14. A member may at any time resign his office.

1st Sch.

15. A person who is or has been a member of either Council shall be eligible for appointment as a member of that Council.

Committees

16. Each of the Councils may appoint one or more committees consisting wholly or partly of members of that Council, and where not less than two-thirds of the members of such a committee are members of the Council, the Council may delegate to it any of the Council's functions.

Proceedings

17. The proceedings of either of the Councils or any committee appointed by the Council shall not be invalidated by any vacancy in the membership of the Council or committee, or by any defect in the appointment of any member.

18. Each of the Councils and, subject to any directions of the Council, any committee appointed by it, may regulate its own procedure and fix a quorum for its own proceedings.

Accounts and audit

19. Each of the Councils shall keep proper accounts and other records in relation to the accounts and prepare in respect of each financial year and transmit to the Health Ministers a statement of account in such form as the Health Ministers may, with the approval of the Treasury, determine.

20. The Minister of Health and the Secretary of State shall transmit those statements on or before the thirtieth day of November following the financial year to the Comptroller and Auditor General, who shall examine and certify them and lay copies of them together with his report thereon before each House of Parliament.

SECOND SCHEDULE

Section 1.

ADVISORY COMMITTEES

Scotland

1. The Secretary of State shall appoint to each of the Councils mentioned in section one of this Act a committee whose duty it shall be to advise the Council on matters relating to the exercise of its functions so far as they concern Scotland, and the committees shall be called respectively the Scottish Advisory Committee to the Council for the Training of Health Visitors and the Scottish Advisory Committee to the Council for Training in Social Work.

2. The Scottish Advisory Committee to the Council for the Training of Health Visitors shall consist of a chairman and twelve other members and the Scottish Advisory Committee to the Council for Training in Social Work of a chairman and eleven other members, and each of the members of each Committee shall hold office in accordance with the terms of his appointment.

2ND SCH. 3. Each of the members of each Committee shall hold office for a term not exceeding three years.

4. A person who is or has been a member of either Committee shall be eligible for appointment as a member of that Committee.

5. The chairman and five of the other members of each committee shall be appointed from among the members of the Council to which the committee is appointed.

6. The Secretary of State may appoint a secretary to the committees appointed under paragraph 1 of this Schedule.

7. The Secretary of State shall pay out of moneys provided by Parliament—

(a) to each of the committees appointed under paragraph 1 of this Schedule, such sums as may be necessary to defray the expenditure incurred by the committee with his approval; and

(b) to the secretary appointed under paragraph 6 of this Schedule, such remuneration as he may determine;

and may pay out of moneys provided by Parliament the like allowances to members of the committees appointed under paragraph 1 of this Schedule as are payable under subsection (4) of section one of this Act to members of a committee appointed under paragraph 16 of the First Schedule to this Act.

Northern Ireland

8. The Minister of Health and Local Government for Northern Ireland may appoint to each of the Councils mentioned in section one of this Act a committee to advise the Council on matters relating to its functions so far as they concern Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 27.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.
Local Government Act, 1958	6 & 7 Eliz. 2. c. 55.
Local Government and Miscellaneous Financial Provisions (Scotland) Act, 1958.	6 & 7 Eliz. 2. c. 64.